

Labour Enforcement Officer Recruitment Rules, 1990

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State of Bihar - Act

Labour Enforcement Officer Recruitment Rules, 1990

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Labour Enforcement Officer Recruitment Rules, 1990

Rule LABOUR-ENFORCEMENT-OFFICER-RECRUITMENT-RULES-1990 of 1990

Published on 25 January 1991

Commenced on 25 January 1991

[This is the version of this document from 25 January 1991.]

[Note: The original publication document is not available and this content could not be verified.]

Labour Enforcement Officer Recruitment Rules, 1990

Published vide Notification No. G.S.R. 39, dated 25th January, 1991, published in Bihar Gazette dated 27.11.1991

G.S.R. 39, dated 27th November, 1991. - In exercise of the power conferred by the proviso to Article 309 of the Constitution of India, the Governor of Bihar hereby makes the following rules regulating the method of recruitment of the post of "Labour Enforcement Officer" namely :-

1.

Short title and commencement.

- (i) These Rules shall be called the Labour Enforcement Officer Recruitment Rules, 1990;

(ii)

It shall come into force from the date of publication in the Official Gazette.

2.

Number, Classification and Scale of pay.

-

(a)

Number of post. - 641 (The number of posts may be changed as per need by the State Government.);

(b)

Classification - Class III Non-Gazetted;

(c)

Pay Scale - Rs. 1600-50-2300-60-2780. (Revision in the Scale of pay can be made by the State Government from time to time).

3.

(i)

Method of recruitment, age limit and other qualifications etc. -

(a)

Method of Recruitment - The post of Labour Enforcement Officer is a non-gazetted class-III post on which appointment is made on the recommendation of Bihar Sub-ordinate Service Selection Board.

(b)

In case of appointment through promotion such employee working under the administrative Control of the Commissioner of Labour, Bihar whose Scale of pay is lower than that of Labour Enforcement Officer; are eligible for promotion.

(ii)

Age limit and other qualification -

(a)

In case of direct recruitment - Minimum 18 years-Maximum 30 years or as decided by the State Government from time to time, 35 years in respect of Scheduled Castes and Scheduled Tribes Candidates. The maximum age limit of the State Government, employees may be relaxed upto 5 (Five) years. The decisions taken from time to time in this respect by the State Government shall be applicable.

(b)

Educational and other qualification in case of direct recruitment-Degree in Arts/Science/Commerce from a recognised university and Labour and Social Welfare subject is essential as one of the optional subjects in competitive examinations.

(c)

The following qualification shall be applicable in case of recruitment through promotion -

(i)

Graduate from a recognised University;

(ii)

Class-III employees who have completed 5 (five) years of continuous service under the administrative control of the Commissioner of Labour, Bihar;

(iii)

Maximum Age limit 45 years.

4.

Period of Probation.

- Two years.

5.

Method of recruitment i.e., the percentage of vacancies to be filled by direct recruitment and promotion.

- No percentage has been fixed for vacancies to be filled up by promotion but the decision taken with regard to number of vacancies and number of posts to be filled up by direct recruitment/through promotion by the Administrative department shall be applicable.

6.

Is the post Selective or non Selective

- Selective.

7.

Reservation.

- In respect of direct recruitment/recruitment through promotion decisions taken by the State Government and rules prescribed in this regard with regard to candidates belonging to Scheduled Castes/Scheduled Tribes/other Backward classes shall apply.

8.
Structure of the Promotion Committee, if such Committee, exists in the department -

- (i)
Commissioner of Labour Bihar - Chairperson.
- (ii)
Director, Agriculture, Labour, Bihar - Member and co-ordinator.
- (iii)
Deputy Labour Commissioner (Headquarter) - Member.
- (iv)
Joint Labour Commissioner/Deputy Labour Commissioner belonging to Scheduled Caste/Scheduled Tribe posted at Headquarter.
- (v)
Member, Nominated by Personnel department as the representative of Scheduled Caste/Scheduled Tribe.
- (vi)
A member of Minority Community.

9.
Disqualifications.

- No person
- (a)
who has entered into or contracted a marriage with a person having a spouse living; or
- (b)
who having a spouse living, has entered into or contracted a marriage with any person, shall not be eligible for appointment to the said post:

Provided that the State Government may, if satisfied that such marriage is permissible under the personal law applicable to such persons and the other party to the marriage and that there are other grounds for so doing, exempt any person from the operation of these Rules.

10.
Power to relax.
- Where the State Government is of opinion that it is necessary or expedient so to do, it may, by order, for reasons to be recorded in writing, relax any of the provision of these Rules to any class or category of persons.

11.
Saving.
- Nothing in these Rules shall affect reservations, relaxation of age limit and other concessions required to be provided for the Scheduled Castes, the Scheduled Tribes, other Backward Classes and other special Categories of persons in accordance with the orders issued by the State Government from time to time in this regard.

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